

संभव Batch

Under Guidance of Vipulendra Tripathi Sir

Polity: Constitutional Amendments

1. Constitutional Amendment Procedure (Article 368, Part XX)

The Constitution of India provides for its amendment to adjust to changing conditions. The procedure is neither as easy as in Britain nor as rigid as in the USA. It is a synthesis of both.

- **Initiation:** An amendment can only be initiated by the introduction of a bill in either House of Parliament (Lok Sabha or Rajya Sabha), NOT in state legislatures.
- **Introduction:** Can be introduced by a minister or a private member; does not require prior permission of the President.
- **Majority Required:**
 - **Simple Majority:** For minor provisions (e.g., formation of new states, citizenship, quorum). Not considered an amendment under Art 368.
 - **Special Majority:** Majority of total membership of the House AND a majority of two-thirds (2/3) of members present and voting. (Used for Fundamental Rights, DPSP, etc.)
 - **Special Majority + Ratification:** If the bill affects federal provisions (e.g., President's election, Supreme/High Courts, GST Council), it must also be ratified by the legislatures of **half of the states** by a simple majority.
- **No Joint Sitting:** If there is a disagreement between the two Houses, there is NO provision for holding a joint sitting.
- **Presidential Assent:** After passage, the President **must** give assent to the bill (made obligatory by the 24th Amendment Act, 1971). He cannot withhold or return the bill.

2. Landmark Supreme Court Judgments on Amendments

- **Shankari Prasad Case (1951) & Sajjan Singh Case (1965):** SC ruled that Parliament's amending power under Art 368 also includes the power to amend Fundamental Rights. 'Law' under Art 13 does not include constitutional amendment acts.
- **Golaknath Case (1967):** SC reversed its stance, stating Fundamental Rights have a "transcendental position" and Parliament cannot abridge or take them away.
- **Kesavananda Bharati Case (1973):** Historic 13-judge bench. SC overruled Golaknath. It held that Parliament CAN amend any part of the Constitution (including Fundamental Rights), but it cannot alter the **"Basic Structure"** of the Constitution.
- **Minerva Mills Case (1980):** SC struck down a clause from the 42nd Amendment that gave unlimited amending power to Parliament, reinforcing the Basic Structure doctrine and judicial review.
- **Waman Rao Case (1981):** SC clarified that the Basic Structure doctrine applies to all constitutional amendments enacted *after* April 24, 1973 (the date of the Kesavananda Bharati judgment).

3. Comprehensive List of All 106 Constitutional Amendments

No. & Year	Key Facts, Details & Provisions
1st (1951)	Added 9th Schedule to protect land reform laws from judicial review. Added reasonable restrictions on freedom of speech (public order, friendly relations).
2nd (1952)	Readjusted scale of representation for Lok Sabha elections.
3rd (1954)	Re-enacted entry 33 of Concurrent List regarding trade and commerce.
4th (1955)	Made scale of compensation for compulsory acquisition of property beyond judicial review. Authorized state monopoly in any trade.
5th (1955)	Empowered the President to fix a time limit for state legislatures to express their views on proposed Central laws affecting states' areas/boundaries.
6th (1956)	Included taxes on inter-state trade and commerce in the Union List.
7th (1956)	Major Reorganization: Abolished Class A, B, C, D states and reorganized India into 14 States and 6 UTs. Provided for a common High Court for two or more states.
8th (1959)	Extended reservation of seats for SCs, STs, and Anglo-Indians in Parliament and state assemblies till 1970.
9th (1960)	Facilitated the cession of Indian territory (Berubari Union) to Pakistan as per the Indo-Pak Agreement (1958).
10th (1961)	Incorporated Dadra and Nagar Haveli as a Union Territory.

11th (1961)	Changed the procedure of election of the Vice-President (Electoral College instead of joint meeting). Made it clear that election of President/VP cannot be challenged on ground of vacancy in electoral college.
12th (1962)	Incorporated Goa, Daman, and Diu as a Union Territory.
13th (1962)	Gave the status of a State to Nagaland with special provisions (Art 371A).
14th (1962)	Incorporated Puducherry as a Union Territory. Created legislatures for HP, Manipur, Tripura, Goa, Daman & Diu, and Puducherry.
15th (1963)	Increased retirement age of High Court judges from 60 to 62 years.
16th (1963)	Included 'sovereignty and integrity of India' as a ground for restricting fundamental rights. New oath forms for ministers and MPs.
17th (1964)	Prohibited acquisition of land under personal cultivation unless market value is paid. Added 44 more Acts to the 9th Schedule.
18th (1966)	Clarified that Parliament's power to form a new state includes the power to unite a part of any State/UT to another State/UT.
19th (1966)	Abolished Election Tribunals and vested the power to hear election petitions in High Courts.
20th (1966)	Validated certain appointments of district judges in Uttar Pradesh.
21st (1967)	Included Sindhi as the 15th language in the 8th Schedule.
22nd (1969)	Facilitated creation of a new autonomous State of Meghalaya within Assam.
23rd (1969)	Extended reservation for SC/ST and Anglo-Indians till 1980.
24th (1971)	Crucial: Affirmed Parliament's power to amend any part of the Constitution including Fundamental Rights. Made it compulsory for President to give assent to a Constitutional Amendment Bill.
25th (1971)	Curtailed right to property; provided that any law made to give effect to Directive Principles 39(b) or (c) cannot be challenged on grounds of violating Arts 14, 19, or 31.
26th (1971)	Abolished the privy purses and privileges of the former rulers of princely states.
27th (1971)	Created UTs of Mizoram and Arunachal Pradesh.
28th (1972)	Abolished special privileges of ICS (Indian Civil Service) officers.

29th (1972)	Added Kerala Land Reforms Acts to the 9th Schedule.
30th (1972)	Abolished the minimum value requirement (Rs 20,000) for appealing to the Supreme Court in civil cases.
31st (1973)	Increased Lok Sabha seats from 525 to 545.
32nd (1973)	Made special provisions for the state of Andhra Pradesh (Mulki Rules setup).
33rd (1974)	Provided that resignation of members of Parliament and state legislatures is accepted only if the presiding officer is satisfied it is voluntary.
34th (1974)	Added various states' land reform laws to the 9th Schedule.
35th (1974)	Terminated the protectorate status of Sikkim and conferred on it the status of an 'Associate State'.
36th (1975)	Made Sikkim a full-fledged State of the Indian Union (22nd State) and omitted the 10th Schedule added by 35th Act.
37th (1975)	Provided legislative assembly and council of ministers for the UT of Arunachal Pradesh.
38th (1975)	Made the declaration of emergency by President non-justiciable. Promulgation of ordinances by President/Governors made non-justiciable.
39th (1975)	Placed disputes relating to the election of President, VP, PM, and Speaker beyond the scope of the judiciary.
40th (1976)	Empowered Parliament to specify territorial waters, continental shelf, and EEZ. Added 64 acts to 9th Schedule.
41st (1976)	Raised retirement age of State Public Service Commission members from 60 to 62.
42nd (1976)	Mini-Constitution (Most Comprehensive): Added words 'Socialist', 'Secular', 'Integrity' to Preamble. Added Fundamental Duties (Part IVA). Made President bound by Cabinet advice. Added Part XIVA (Tribunals). Curtailed judicial review of SC/HCs. Shifted 5 subjects (Education, Forests, Weights/Measures, Protection of wild animals/birds, Administration of justice) to Concurrent List.
43rd (1977)	Restored the jurisdiction of Supreme Court and High Courts regarding judicial review and issue of writs (reversed parts of 42nd Act).
44th (1978)	Janata Party Act: Removed Right to Property from Fundamental Rights (made legal right under Art 300A). Changed emergency grounds from 'internal disturbance' to 'armed rebellion'. Cabinet's written recommendation required for National Emergency. Art 20 & 21 cannot be suspended during emergency.
45th (1980)	Extended SC/ST and Anglo-Indian reservation till 1990.
	Plugged loopholes to uniform sales tax mechanisms across states.

46th (1982)	
47th (1984)	Added 14 land reform Acts to the 9th Schedule.
48th (1984)	Facilitated extension of President's rule in Punjab beyond one year without emergency conditions.
49th (1984)	Gave constitutional sanctity to the Autonomous District Council in Tripura.
50th (1984)	Empowered Parliament to restrict Fundamental Rights of persons employed in intelligence organizations and telecommunication systems for armed forces.
51st (1984)	Provided reservation of seats in Lok Sabha for STs in Meghalaya, Nagaland, Arunachal, and Mizoram.
52nd (1985)	Anti-Defection Law: Provided for disqualification of MPs/MLAs on ground of defection. Added the 10th Schedule.
53rd (1986)	Made special provisions for the new State of Mizoram (Art 371G).
54th (1986)	Enhanced the salaries of Judges of the Supreme Court and High Courts.
55th (1986)	Made special provisions for the new State of Arunachal Pradesh (Art 371H).
56th (1987)	Fixed the strength of the Goa Legislative Assembly at a minimum of 30 members upon statehood.
57th (1987)	Reserved seats for STs in the legislative assemblies of NE states based on population.
58th (1987)	Provided for an authoritative text of the Constitution in the Hindi language.
59th (1988)	Allowed declaration of National Emergency in Punjab on the ground of 'internal disturbance' (temporarily reversing 44th Act for Punjab).
60th (1988)	Increased the ceiling of taxes on professions, trades, and callings from Rs 250 to Rs 2500 per annum.
61st (1989)	Voting Age: Reduced voting age for Lok Sabha and assembly elections from 21 years to 18 years.
62nd (1989)	Extended SC/ST reservation till 2000.
63rd (1989)	Repealed the changes made by the 59th Amendment relating to Punjab emergency.
64th (1990)	Extended President's rule in Punjab up to 3 years and 6 months.

65th (1990)	Provided for a multi-member National Commission for SCs and STs, replacing a Special Officer.
66th (1990)	Added 55 more land reform Acts to the 9th Schedule.
67th (1990)	Extended President's rule in Punjab up to 4 years.
68th (1991)	Extended President's rule in Punjab up to 5 years.
69th (1991)	Delhi NCR: Accorded special status to UT of Delhi by designating it as National Capital Territory of Delhi. Created a 70-member assembly and a 7-member council of ministers.
70th (1992)	Included members of Delhi and Puducherry legislative assemblies in the Electoral College for the President.
71st (1992)	Included Konkani, Manipuri, and Nepali in the 8th Schedule (Total 18).
72nd (1992)	Provided reservation to STs in Tripura State Legislative Assembly.
73rd (1992)	Panchayati Raj: Granted constitutional status and protection to Panchayati Raj institutions. Added Part IX and 11th Schedule.
74th (1992)	Municipalities: Granted constitutional status to Urban Local Bodies. Added Part IXA and 12th Schedule.
75th (1994)	Provided for setting up of Rent Control Tribunals at the state level.
76th (1994)	Placed the Tamil Nadu Reservation Act (providing 69% reservation, crossing the 50% limit) in the 9th Schedule to protect it from judicial review.
77th (1995)	Provided for reservation in promotions in government jobs for SCs and STs (Art 16(4A)).
78th (1995)	Added 27 more Acts to the 9th Schedule (Total acts now 284).
79th (1999)	Extended SC/ST reservation till 2010.
80th (2000)	Implemented the 10th Finance Commission recommendation to share total central taxes (Alternative Scheme of Devolution) with states at 29%.
81st (2000)	Empowered the State to consider unfilled reserved vacancies of a year as a separate class (Carry Forward Rule) thereby removing the 50% ceiling on backlog vacancies.
82nd (2000)	Restored relaxation of qualifying marks and standards of evaluation in matters of reservation in promotion for SCs/STs.
83rd (2000)	Exempted Arunachal Pradesh from the requirement of providing SC reservation in Panchayats (as it has no native SC population).

84th (2001)	Extended the freeze on readjustment of seats in Lok Sabha and Assemblies for another 25 years (till 2026). Allowed delimitation of territorial constituencies on the basis of 1991 census.
85th (2001)	Provided for 'consequential seniority' in the case of promotion by virtue of rule of reservation for SC/ST employees, with retrospective effect from 1995.
86th (2002)	Right to Education: Made elementary education a fundamental right for children between 6-14 years (Art 21A). Changed DPSP Art 45 (early childhood care). Added a new fundamental duty under Art 51A(k).
87th (2003)	Provided for readjustment and rationalization of territorial constituencies in the states based on the 2001 census instead of 1991.
88th (2003)	Made a provision for Service Tax under Article 268A (Levied by Centre, collected by Centre and States).
89th (2003)	Bifurcated the combined National Commission for SCs and STs into two separate bodies: NC for SCs (Art 338) and NC for STs (Art 338A).
90th (2003)	Maintained the representation of STs and non-STs in the Assam legislative assembly from the Bodoland Territorial Areas District.
91st (2003)	Council of Ministers & Defection: Limited the total number of ministers (including PM/CM) to 15% of the total strength of Lok Sabha/State Assembly. Strengthened the Anti-Defection law (removed exception for 1/3rd splits).
92nd (2003)	Included Bodo, Dogri, Maithili, and Santhali in the 8th Schedule. Total recognized languages reached 22.
93rd (2005)	Empowered state to make special provisions for socially and educationally backward classes or SC/STs in educational institutions including private institutions, except minority institutions (Art 15(5)).
94th (2006)	Freed Bihar from the obligation of having a tribal welfare minister, and extended this provision to newly formed states of Chhattisgarh and Jharkhand (alongside MP and Odisha).
95th (2009)	Extended SC/ST reservation and Anglo-Indian nomination till 2020.
96th (2011)	Substituted 'Odia' for 'Oriya' in the 8th Schedule.
97th (2011)	Co-operative Societies: Gave constitutional status to co-operative societies. Made right to form them a fundamental right (Art 19), added a new DPSP (Art 43B), and added a new Part IXB.
98th (2012)	Empowered Governor of Karnataka to take steps for development of Hyderabad-Karnataka Region (Article 371J).
99th (2014)	Replaced the collegium system with the National Judicial Appointments Commission (NJAC). (<i>Note: Declared unconstitutional and void by the Supreme Court in 2015.</i>)
100th (2015)	Land Boundary Agreement: Gave effect to the acquiring of territories by India and transfer of certain territories to Bangladesh in pursuance of the 1974 agreement and its 2011 protocol. (Exchange of enclaves).

101st (2016)	GST: Introduced the Goods and Services Tax (GST). Inserted Article 246A, 269A, and 279A (GST Council).
102nd (2018)	Granted constitutional status to the National Commission for Backward Classes (NCBC) by inserting Article 338B and 342A.
103rd (2019)	EWS Quota: Provided 10% reservation in government jobs and educational institutions for Economically Weaker Sections (EWS) of the unreserved categories (Amended Art 15 and 16).
104th (2020)	Extended reservation of seats for SCs and STs in Lok Sabha and state assemblies till 2030. Ended the reservation for the Anglo-Indian community.
105th (2021)	Restored the power of State governments and Union Territories to identify and maintain their own list of Socially and Educationally Backward Classes (SEBCs/OBCs).
106th (2023)	Nari Shakti Vandan Adhiniyam: Reserves one-third (33%) of all seats for women in the Lok Sabha, State Legislative Assemblies, and the Delhi Legislative Assembly, including a sub-quota within the SC and ST reserved seats. The reservation will be implemented post the next census and delimitation exercise.